



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street S.W.
Washington, D.C. 20590

AUG 28 1996

DOT-E 11706
(SECOND REVISION)

EXPIRATION DATE: August 29, 1998

(FOR RENEWAL, SEE 49 CFR SECTION 107.105)

1. **GRANTEE:** URS Consultants
Denver, Colorado
2. **PURPOSE AND LIMITATION:** This exemption authorizes the transportation in commerce of certain hazardous wastes for disposal in non-DOT specification, non-bulk packaging. The packagings are transported in closed transport vehicles operated in exclusive-use, private or contract carriage. This exemption provides no relief from any regulation other than as specifically stated herein.
3. **REGULATORY SYSTEM AFFECTED:** 49 CFR Parts 106, 107 and 171-180.
4. **REGULATIONS FROM WHICH EXEMPTED:** 49 CFR Part 171.2(c) in that drums with expired exemption markings are authorized, and 173.213 in that non-specification packagings are authorized, 49 CFR Part 107, Appendix B to Subpart B, Paragraph (1) and 172.302(c) with respect to marking the exemption number on the package.
5. **BASIS:** This exemption is based on the application of URS Consultants dated May 24, 1996, and a subsequent letter dated July 23, 1996, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.
6. **HAZARDOUS MATERIALS (49 CFR 172.101):**

Hazardous Materials description -- proper shipping name	Hazard Class/Division	Identification Number	Packing Group
Hazardous waste, solid, n.o.s.	9	NA3077	III
Hazardous waste, liquid, n.o.s.	9	NA3082	III

7. PACKAGING AND SAFETY CONTROL MEASURES:

- a. Packaging - Non-DOT specification non-bulk packagings suitable for transportation of solids or liquids (See §§ 173.24 or 173.24a).
- b. Shipments must be exclusive-use, private or contract carriage and are authorized only on a direct route between the origin, Jacksonville, AR, to the landfill destination. The location of the landfill must be provided to the Office of Hazardous Materials Exemptions and Approvals before the first shipment.
- c. Drums will be transported in closed weather tight truck, railcar, or freight containers only. Transportation must be by exclusive use vehicles. No hazardous material other than NA 3077 or NA3082 may be transported in such transport vehicles.

8. SPECIAL PROVISIONS:

- a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.
- b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.
- c. Marking - Non-bulk containers shipped under the authority of this exemption may be marked with expired DOT exemption numbers. Additionally, the marking requirements of 49 CFR Part 107, Appendix B to Subpart B, paragraph (1) and 172.302(c) are waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight.10. MODAL REQUIREMENTS:

- a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
- b. All carriers transporting the material authorized under this exemption must be EPA licensed hazardous waste haulers.

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11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

for Marilyn J. Morris
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

August 28, 1996
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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